

## RESOLUTION OF RIGHTS PROCEDURE

Having carried out the procedural actions provided for in Title VIII of Organic Law 3/2018, of December 5, on the Protection of Personal Data and Guarantee of Digital Rights (hereinafter LOPDGDD), the following FACTS have been established:

FIRST: Mr. A.A.A. (hereinafter, the claimant) requested access to his personal data from CABOT FINANCIAL SPAIN S.A.U. (hereinafter, the respondent). This entity responded by providing him with his data as well as "(...) the rest of the documentation we have regarding the matter in question." Subsequently, the claimant contacted Equifax requesting "(...) Remove my data as they are not accurate, nor relevant, nor has any authorization been issued for their processing, apart from the corresponding complaints existing."

"(...) for the operation included at the request of CABOT SECURITISATION, I have not been required or informed of its inclusion in the file, the processing of my data for this operation has not been authorized, and a complaint has been filed with the SAC of the entity and with consumer protection in my community. The entity has falsified the data; the defaults did not occur in April 2019 but in August 2018."

From Equifax, on June 20, 2023, they responded denying the requested deletion "(...) we inform you that we have forwarded your request to CABOT, which has confirmed the existence of the debt and therefore the retention of the data in the file. In this regard, we inform you that it is not possible to comply with your request for deletion of the data.

If you wish to obtain further information, you may contact the creditor entity using the phone number or contact method provided in the attached report.

In any case, we inform you that the data will be canceled five years from the date of each of the unpaid due dates included in the file. Subsequently, the deleted data will be moved to a "blocked" state to prevent its processing, including its viewing, except for making the data available to judges and courts, the Public Prosecutor's Office, or the competent Public Administrations, particularly the data protection authorities. Finally, the data will be securely destroyed."

SECOND: On June 29, 2023, a complaint was filed with this Agency against the respondent for not having duly addressed the right to deletion.

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Along with the complaint, a request for access directed to CABOT and its response was submitted, including communication of the debt assignment from COFIDIS to CABOT and an ASNEF report dated June 20, 2023, denying the deletion of data at the request of CABOT.

THIRD: In accordance with Article 65.4 of the LOPDGDD, the complaint was forwarded to the respondent for analysis and to inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations.

The claimant submitted documentation related to a third party.

FOURTH: The outcome of the transfer procedure indicated in the previous Fact did not allow for the understanding that the claimant's requests were satisfied. Consequently, on September 29, 2023, for the purposes provided for in Article 64.1 of the LOPDGDD, the Director of the Spanish Agency for Data Protection agreed to admit the complaint for processing.

The aforementioned agreement granted the respondent a hearing, so that within ten working days, they could present any arguments they deemed appropriate, stating, in summary, that an error occurred in the submission of the arguments in the previous transfer procedure, and apologizing.

The respondent details the events related to the right of access requested by the claimant.

Regarding the right to deletion of the data held in solvency files,

“The service provider EQUIFAX IBÉRICA, S.L. (“EQUIFAX”) informed CABOT FINANCIAL of the three (3) cancellation requests submitted by the Claimant on April 17, 2023, May 10, 2023, and June 20, 2023, requesting the deletion of their personal data. In this regard, EQUIFAX effectively responded in a timely manner to all of the Claimant's requests.

However, CABOT FINANCIAL -as a preventive measure- upon becoming aware of the Information Request that motivates this Admission Agreement, proceeded to delete the Claimant's personal data from the ASNEF solvency file -for which EQUIFAX is responsible- on August 24 and 28, 2023.

After the deletion of their personal data, CABOT FINANCIAL sent a communication to the Claimant via burofax on September 14, 2023, informing them of the preventive action taken and attaching as documentation the cancellation certificates issued by EQUIFAX that certify that their data was no longer registered.

As can be seen in the communication sent to the Claimant, they are informed about the deletion of their personal data from EQUIFAX until the ongoing Information Request is resolved or archived.

These certificates are included as attached documentation to Document number 4 of this writing.”

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FOURTH: After examining the document submitted by the responding party, it is forwarded to the claiming party, so that, within a period of ten working days, they may formulate the allegations they deem appropriate, without making allegations within the established timeframe.

## LEGAL GROUNDS

I

### Competence

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, and 64.1 of Organic Law 3/2018, of December 5, on Personal Data Protection and the Guarantee of Digital Rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: "The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures."

II

### Preliminary Issues

In accordance with the provisions of Article 55 of the GDPR, the Spanish Agency for Data Protection is competent to perform the functions assigned to it in Article 57, including the enforcement of the Regulation and promoting awareness among controllers and processors regarding their obligations, as well as handling complaints submitted by a data subject and investigating, as appropriate, the reasons for such complaints.

Correspondingly, Article 31 of the GDPR establishes the obligation of controllers and processors to cooperate with the supervisory authority that requests it in the performance of its functions. In cases where they have designated a data protection officer, Article 39 of the GDPR assigns this officer the function of cooperating with that authority.

In accordance with this regulation, following the procedure established in Article 65.4 of the LOPDGDD, prior to the admission of the complaint regarding the exercise of the rights regulated in Articles 15 to 22 of the GDPR, which gives rise to this procedure, it was forwarded to the responding party for analysis, to respond to this Agency within one month, and to demonstrate that they had provided the claimant with the appropriate response.

The result of this forwarding did not allow for the understanding that the claims of the claiming party were satisfied. Consequently, on September 29, 2023, for the purposes provided in Articles 64.1 and 65 of the LOPDGDD, the complaint was admitted for processing. This admission to processing

determines the opening of the present procedure for failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of the GDPR, regulated in Article 64.1 of the LOPDGDD, which states:

"When the procedure refers exclusively to the failure to respond to a request for the exercise of the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 of the European Parliament and of the Council, of April 27, 2016, it shall be initiated by an admission agreement, which shall be adopted in accordance with the provisions of Article 65 of this organic law.

In this case, the deadline for resolving the procedure shall be six months from the date on which the claimant was notified of the admission agreement. After this period, the interested party may consider their complaint to be upheld."

Article 58.2 of the GDPR grants the Spanish Agency for Data Protection a series of corrective powers for the purpose of remedying any infringement of the GDPR, including "ordering the controller or processor to address the requests for the exercise of the rights of the data subject under this Regulation."

### III

#### Rights of Individuals Regarding Personal Data Protection

The rights of individuals regarding personal data protection are regulated in Articles 15 to 22 of the GDPR and Articles 13 to 18 of the LOPDGDD. These include the rights of access, rectification, erasure, objection, the right to restriction of processing, and the right to data portability.

The formal aspects related to the exercise of these rights are established in Articles 12 of the GDPR and 12 of the LOPDGDD.

Additionally, consideration is given to the statements made in Recitals 59 and following of the GDPR. In accordance with the provisions of these regulations, the controller must establish means and mechanisms to facilitate the exercise of rights by the data subject, which shall be free of charge (without prejudice to the provisions of Articles 12.5 and 15.3 of the GDPR), and is obliged to respond to requests made no later than one month, unless they can demonstrate that they are unable to identify the data subject, and to express their reasons if they do not intend to comply with such a request. The burden of proof regarding compliance with the duty to respond to the request for the exercise of rights made by the affected party lies with the controller.

The communication addressed to the data subject regarding their request must be expressed in a concise, transparent, intelligible, and easily accessible form, using clear and plain language.

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### IV

#### Right to Erasure

Article 17 of the GDPR, which regulates the right to erasure of personal data, establishes the following:

"1. The data subject shall have the right to obtain from the controller the erasure of personal data concerning them without undue delay, and the controller shall be obliged to erase personal data without undue delay when one of the following circumstances applies:

- a) the personal data are no longer necessary in relation to the purposes for which they were collected or otherwise processed;
- b) the data subject withdraws consent on which the processing is based in accordance with Article 6(1)(a) or Article 9(2)(a), and there is no other legal ground for the processing;
- c) the data subject objects to the processing pursuant to Article 21(1), and there are no overriding legitimate grounds for the processing, or the data subject objects to the processing pursuant to Article 21(2);
- d) the personal data have been unlawfully processed;
- e) the personal data must be erased for compliance with a legal obligation in Union or Member State law to which the controller is subject;
- f) the personal data have been collected in relation to the offer of information society services referred

to in Article 8(1).

2. When the controller has made the personal data public and is obliged, under the provisions of paragraph 1, to erase such data, the controller, taking into account available technology and the cost of implementation, shall take reasonable steps, including technical measures, to inform controllers that are processing the personal data of the data subject's request for erasure of any links to, or copies or replications of, those personal data.

3. Paragraphs 1 and 2 shall not apply where the processing is necessary:

- a) for exercising the right of freedom of expression and information;
- b) for compliance with a legal obligation which requires processing by Union or Member State law to which the controller is subject, or for the performance of a task carried out in the public interest or in the exercise of official authority vested in the controller;
- c) for reasons of public interest in the area of public health in accordance with Article 9(2)(h) and (i), and paragraph 3;
- d) for archiving purposes in the public interest, scientific or historical research purposes or statistical purposes in accordance with Article 89(1), insofar as the right referred to in paragraph 1 is likely to make impossible or seriously impair the achievement of the objectives of that processing, or
- e) for the establishment, exercise or defense of legal claims."

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V

#### Co-Responsibility

Article 20 of the LOPDGDD, referring to credit information systems, in its section 2 establishes that the entities maintaining the system and the creditors, regarding the processing of data related to their debtors, shall be considered co-responsible for the processing of the data, applying the provisions established by Article 26 of Regulation (EU) 2016/679. It is the responsibility of the creditor entity to ensure that the requirements for inclusion in the system of the debt are met, being liable for its non-existence or inaccuracy.

Article 26 of the GDPR, Co-Responsible for Processing, states that

"1. When two or more controllers jointly determine the purposes and means of processing, they shall be considered co-controllers of the processing. The co-controllers shall transparently and by mutual agreement determine their respective responsibilities in complying with the obligations imposed by this Regulation, in particular regarding the exercise of the rights of the data subject and their respective obligations to provide information referred to in Articles 13 and 14, unless, and to the extent that, their respective responsibilities are governed by Union or Member State law applicable to them. Such an agreement may designate a contact point for data subjects.

2. The agreement referred to in paragraph 1 shall duly reflect the respective functions and relationships of the co-controllers in relation to the data subjects. The essential aspects of the agreement shall be made available to the data subject.

3. Regardless of the terms of the agreement referred to in paragraph 1, data subjects may exercise the rights conferred on them by this Regulation against, and before, each of the controllers."

On the other hand, the Guidelines 1/2022, in their version of March 28, 2023, from the European Data Protection Board, indicate that "When two or more controllers process data jointly, the provision of the co-controllers regarding their respective responsibilities in relation to the exercise of the rights of the data subject, especially regarding the response to access requests, shall not affect the rights of the data subjects against the controller to whom they direct their request."

VI

#### Conclusion

In this case, it has been established that the claimant requested the deletion of their data from Equifax, and that this request was denied as it had been confirmed by the responding party.

Regarding the statements of the claimant concerning that "(...) I have not been required or informed of

my inclusion in the file, the processing of my data for this operation has not been authorized, in addition, a complaint has been filed with the entity's SAC and with the consumer office of my community. The entity has falsified the data of the defaults which did not occur in April 2019 but in August 2018," it should be noted what is provided in Article 20 of the LOPDGDD:

"1. Unless proven otherwise, the processing of personal data relating to the non-fulfillment of monetary, financial, or credit obligations by common credit information systems shall be presumed lawful when the following requirements are met:

- a) That the data has been provided by the creditor or by someone acting on their behalf or interest.
- b) That the data refers to certain, overdue, and enforceable debts, the existence or amount of which has not been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.
- c) That the creditor has informed the affected party in the contract or at the time of requesting payment about the possibility of inclusion in such systems, indicating those in which they participate.

The entity maintaining the credit information system with data relating to the non-fulfillment of monetary, financial, or credit obligations must notify the affected party of the inclusion of such data and inform them about the possibility of exercising the rights established in Articles 15 to 22 of Regulation (EU) 2016/679 within thirty days following the notification of the debt to the system, with the data being blocked during that period.

- d) That the data is only maintained in the system while the non-fulfillment persists, with a maximum limit of five years from the date of maturity of the monetary, financial, or credit obligation.

e) (...)

2. The entities maintaining the system and the creditors, regarding the processing of the data related to their debtors, shall be considered co-responsible for the processing of the data, applying the provisions established by Article 26 of Regulation (EU) 2016/679.

It shall be the responsibility of the creditor to ensure that the requirements for inclusion in the system of the debt are met, being liable for its non-existence or inaccuracy.

(...)"

In this case, no documentary evidence has been provided that allows for the assessment of the inaccuracy of the date of default or that such debt has been subject to administrative or judicial claim by the debtor or through a binding alternative dispute resolution procedure between the parties.

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Furthermore, it has not been proven that the claiming party requested the deletion of their data from the claimed party.

Notwithstanding the above, the claimed party, upon becoming aware of the present procedure, has taken preventive measures to "(...) delete the personal data of the Claimant from the ASNEF financial solvency file - the responsibility of EQUIFAX" and has communicated this to the claiming party.

As a consequence of the above, the claim that initiated the present procedure is hereby dismissed.

In view of the cited provisions and other generally applicable regulations, the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO DISMISS the claim filed by Mr. A.A.A. against CABOT FINANCIAL SPAIN S.A.U.

SECOND: TO NOTIFY this resolution to Mr. A.A.A. and to CABOT FINANCIAL SPAIN S.A.U.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative procedure in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly file a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of

Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law.  
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